

HOUSE No. 3976

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to competitive bidding for school transportation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/16/2025</i>

HOUSE No. 3976

By Representative Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 3976) of Michael P. Kushmerek relative to competitive bidding for school transportation.
Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to competitive bidding for school transportation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 7A of chapter 90 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after the sixth paragraph the following paragraph:-

3 Prior to the completion of an inspection of a school bus or other school transport vehicle
4 inspected pursuant to the preceding paragraph, the owner of such vehicle shall submit to the
5 registrar: (i) any successful bid to provide transportation to a school district in the
6 commonwealth; (ii) all non-successful bids to provide transportation to a school district in the
7 commonwealth submitted in the previous school year; (iii) the winning bids from all school
8 transportation bids in which the company's vehicle was not successful in the previous school
9 year; and (iv) an affidavit attesting to the truth and accuracy of such information. If a company
10 fails to provide the information required by this paragraph, the company's school transportation
11 vehicle shall fail the inspection. If the unsuccessful bids are more than 2 per cent below the

- 12 winning bid, a vehicle shall fail inspection. If the company only wins 1 school bus bid a year for
- 13 5 successive years, a vehicle shall fail inspection.